



## DECISION

POS/6485/2025/KC

Complaint No. :

Name and address  
of the complainant :

Mr. Sattar Qaim Khani,  
R/o. House DT-13, Block-12, F.B. Area, Karachi.

Name of the Agency  
complained against :

Sindh Building Control Authority (SBCA).

Name & Designation of  
Investigating Officer :

Mr. Iqbal Nafees Khan  
Regional Director, Karachi Central.

Subject :-

**COMPLAINT AGAINST ILLEGAL CONSTRUCTION OF  
07/08 FLOORS ON PLOT NO. BS-1, BLOCK-12, F.B.  
AREA, KARACHI**

### COMPLAINT

Mr. Sattar Qaim Khani lodged a complaint on 12.09.2025 regarding illegal construction of 7th and 8th floors on Plot No. BS-1, Block-12, Federal "B" Area, Karachi, in violation of the Approved Building Plan. He stated that the Sindh Building Control Authority (SBCA) had accorded NOC only for construction up to the 6th floor. Despite repeatedly reporting the matter to the concerned department, no effective action was taken. He, therefore, sought the intervention of this Institution for redressal of his grievance.

### PROCEEDINGS

2. The complaint was examined and admitted under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (as amended in 2020), by condoning the delay. Upon submission of the requisite affidavit on Form "A", the matter was referred to the Agency for comments.
3. In response, the Deputy Director, SBCA, District Central, Karachi, vide letter dated 29.10.2025, submitted that in compliance with the directives of the Hon'ble High Court of Sindh in Constitutional Petition No. D-5508/2023 (Mr. Muhammad Shahid versus Province of Sindh), the 7th and 8th floors constructed on the said plot had been demolished. He further reported that a letter dated 29.10.2025 had been issued to the owner/builder, directing immediate removal of debris and shuttering of the demolished structure. It was also stated that the revised proposed building plan submitted by the builder vide letter dated 23.06.2025 had been rejected, and the Builder's License as well as the NOC for Sale and Advertisement issued for the said project had already been cancelled by SBCA.
4. Earlier, the Deputy Director, SBCA, District Central, Karachi, vide letters dated 27.01.2025 and 23.06.2025, had intimated Mrs. Ayat Fatima, Owner/Attorney of the property, regarding violation of the Approved Completion Plan and directed her to remove the illegal mezzanine and 7th floor within seven (07) days, failing which legal action would be initiated.
5. The complainant, in his rejoinder dated 05.11.2025, inter alia, pointed out that construction activities had resumed on the plot in question with the alleged support and/or negligence of SBCA officials. He further requested disconnection of utility services until issuance of a fresh Completion Certificate.



**SITE VISIT**

6. The site was visited by officials of the Regional Office, Provincial Ombudsman Sindh, Karachi Central, on 18.12.2025. They reported that shuttering and some partially constructed structures were present on the 7<sup>th</sup> and 8<sup>th</sup> floors of the building; however, no construction activity was found in progress at the site at the time of inspection. It was further reported that the complainant resides approximately one kilometre away from the site.

**FINDING**

7. I have examined the record and observed that the Agency has not taken effective action for complete removal of the illegal structures. There remains a reasonable apprehension of resumption of illegal construction activities at the site.

**DECISION**

8. In exercise of powers conferred under Section 11 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (as amended), I hereby direct the Director General, Sindh Building Control Authority (SBCA), to take effective action for complete removal of the illegal structures and to ensure that no illegal construction is resumed on the plot in question.
9. He is also directed to take the legal action for violation of the rules and instructions of SBCA authorities.
10. A compliance report shall be submitted to this office within sixty (60) days of issuance of this decision.

***Given under my hand and seal of this office.***



***Sd /-***

**(MUHAMMAD SOHAIL RAJPUT)**

**Sitara-e-Imtiaz (PAS  
OMBUDSMAN SINDH**

Karachi, the 13<sup>th</sup> January, 2026